CERTIFICATE OF INCORPORATION OF GENTLE REMINDER HEALTH CORP

Document ID: FORM-001 **Entity:** Gentle Reminder Health Corp **State:** Delaware **Status:** DRAFT — review + file at https://icis.corp.delaware.gov/ **Filing fee:** $109 standard / $189 24-hour expedited **Required by:** DE Gen. Corp. Law § 102

The undersigned, an individual competent to contract, for the purpose of forming a corporation under the General Corporation Law of the State of Delaware, hereby certifies:

ARTICLE I — NAME

The name of the corporation is **Gentle Reminder Health Corp** (the "Corporation").

ARTICLE II — REGISTERED OFFICE AND REGISTERED AGENT

The address of the Corporation's registered office in the State of Delaware is **16192 Coastal Highway**, in the City of **Lewes**, County of **Sussex**, Zip Code **19958**. The name of its registered agent at such address is **Harvard Business Services, Inc.**

> ***Registered Agent engaged:*** *Harvard Business Services, Inc. (Order #CART1132204, Account ID 502306, engaged 2026-04-22). Annual fee: $50. Details filed at* `docs/legal/formation/registered-agent-confirmation.md`.

ARTICLE III — PURPOSE

The purpose of the Corporation is to engage in any lawful act or activity for which corporations may be organized under the General Corporation Law of the State of Delaware.

ARTICLE IV — CAPITAL STOCK

Section 4.1 — Authorized Shares

The total number of shares of all classes of stock that the Corporation shall have authority to issue is **10,000,000 shares**, all of which shall be designated as **Common Stock**, with a par value of **$0.0001**

per share.

Section 4.2 — Rights of Common Stock

Each share of Common Stock shall entitle the holder thereof to one (1) vote on each matter submitted to a vote of stockholders. The holders of Common Stock shall be entitled to receive dividends, when, as, and if declared by the Board of Directors, and upon any liquidation, dissolution, or winding up of the Corporation, shall be entitled to receive the remaining assets of the Corporation available for distribution to stockholders, ratably in proportion to the number of shares of Common Stock held by them.

ARTICLE V — BOARD OF DIRECTORS

Section 5.1 — Management

The business and affairs of the Corporation shall be managed by or under the direction of the Board of Directors.

Section 5.2 — Number of Directors

The number of directors of the Corporation shall be fixed from time to time by the Board of Directors or the stockholders pursuant to the Bylaws.

Section 5.3 — Elections and Voting

Elections of directors need not be by written ballot unless the Bylaws of the Corporation shall so provide.

Section 5.4 — Bylaws

In furtherance and not in limitation of the powers conferred by statute, the Board of Directors is expressly authorized to make, amend, alter, change, add to, or repeal the Bylaws of the Corporation, subject to the power of the stockholders to amend, alter, change, add to, or repeal the Bylaws made by the Board of Directors.

ARTICLE VI — LIABILITY OF DIRECTORS

To the fullest extent permitted by the General Corporation Law of the State of Delaware as the same exists or as may hereafter be amended, no director of the Corporation shall be personally liable to the Corporation or its stockholders for monetary damages for breach of fiduciary duty as a director. No

amendment to or repeal of this Article VI shall apply to or have any effect on the liability or alleged liability of any director for or with respect to any acts or omissions of such director occurring prior to such amendment.

ARTICLE VII — INDEMNIFICATION

Section 7.1 — Right to Indemnification

The Corporation shall indemnify to the fullest extent permitted by law any person made or threatened to be made a party to any action, suit, or proceeding, whether civil, criminal, administrative, or investigative, by reason of the fact that such person, or a person for whom such person is the legal representative, is or was a director or officer of the Corporation or, while serving as a director or officer of the Corporation, is or was serving at the request of the Corporation as a director, officer, employee, agent, or fiduciary of another corporation, partnership, joint venture, trust, enterprise, or nonprofit entity, including service with respect to employee benefit plans, against all liability and loss suffered and expenses (including attorneys' fees) reasonably incurred by such person.

Section 7.2 — Advancement of Expenses

The Corporation shall advance expenses (including attorneys' fees) incurred by any person entitled to indemnification under Section 7.1 in defending any action, suit, or proceeding in advance of its final disposition; provided, however, that such advancement shall be made only upon delivery to the Corporation of an undertaking by or on behalf of such indemnitee to repay all amounts so advanced if it shall ultimately be determined that such indemnitee is not entitled to be indemnified under this Article VII or otherwise.

Section 7.3 — Non-Exclusivity

The rights to indemnification and advancement of expenses conferred in this Article VII shall not be exclusive of any other right that any person may have or hereafter acquire under any statute, provision of this Certificate of Incorporation, Bylaws, agreement, vote of stockholders or disinterested directors, or otherwise.

ARTICLE VIII — EXCLUSIVE FORUM

Unless the Corporation consents in writing to the selection of an alternative forum, the Court of Chancery of the State of Delaware shall, to the fullest extent permitted by law, be the sole and exclusive forum for (i) any derivative action or proceeding brought on behalf of the Corporation, (ii)

any action asserting a claim of breach of fiduciary duty owed by any director, officer, employee, or agent of the Corporation to the Corporation or the Corporation's stockholders, (iii) any action asserting a claim against the Corporation arising pursuant to any provision of the General Corporation Law of the State of Delaware or as to which the General Corporation Law of the State of Delaware confers jurisdiction on the Court of Chancery, or (iv) any action asserting a claim against the Corporation governed by the internal affairs doctrine.

ARTICLE IX — INCORPORATOR

The name and mailing address of the incorporator are:

Christopher McPherson 505 S CENTRAL AVE LODI, CA 95240

The powers of the incorporator shall terminate upon the filing of this Certificate of Incorporation. Thereafter, the name and mailing address of each person who is to serve as a director of the Corporation until the first annual meeting of stockholders or until a successor is duly elected and qualified shall be as set forth in the Action by Sole Incorporator.

ARTICLE X — AMENDMENT

The Corporation reserves the right to amend, alter, change, or repeal any provision contained in this Certificate of Incorporation in the manner now or hereafter prescribed by statute, and all rights conferred upon stockholders herein are granted subject to this reservation.

IN WITNESS WHEREOF, the undersigned incorporator has executed this Certificate of Incorporation as of the date set forth below.

Date: April 22, 2026

/s/ Christopher McPherson **Christopher McPherson** Incorporator

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